

ELIZABETH II



1972 CHAPTER ii

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936, relating to the New Zealand and Australian Land Company Limited.
[1st March 1972]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52. Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation of Order in schedule.
2. This Act may be cited as the New Zealand and Australian Land Company Limited Order Confirmation Act 1972. Short title.

c. ii *New Zealand and Australian Land Company Limited*
Order Confirmation Act 1972

SCHEDULE

NEW ZEALAND AND AUSTRALIAN LAND COMPANY
LIMITED

Provisional Order to make provision for the transfer to the State of New South Wales in the Commonwealth of Australia of the registered office of The New Zealand and Australian Land Company Limited; for the cessation of application to that company of provisions of the Companies Acts 1948 to 1967; and for other purposes incidental thereto.

Whereas The New Zealand and Australian Land Company Limited (hereinafter referred to as "the Company") is an existing company within the meaning of the Companies Acts 1948 to 1967 and is a company limited by shares:

1948 c. 38. And whereas the Company is a subsidiary within the meaning of section 154 of the Companies Act 1948 of Dalgety Limited:

And whereas the Company was incorporated on 26th October, 1877, under the Companies Acts 1862 and 1867:

And whereas the Company carries on business as the owner of sheep and cattle stations in the Commonwealth of Australia and in New Zealand:

And whereas the registered office of the Company is situate in Scotland:

1952 c. 10. And whereas, with a view to the more efficient and economical administration of the Company, and with the consent of Her Majesty's Treasury pursuant to section 468 of the Income Tax Act 1952, the central management and control of the Company's business ceased on the 30th September, 1969, to be exercised in the United Kingdom and has since that date been exercised in the State of New South Wales in the Commonwealth of Australia (hereinafter referred to as "New South Wales"):

And whereas having regard to the area of operation of the Company certain advantages would accrue to the Company if the Company were deemed to be incorporated under the laws of New South Wales instead of under the laws of Scotland:

And whereas no procedure exists whereby the registration of a company to which the Companies Acts 1948 to 1967 apply can be transferred from Scotland to another country:

And whereas procedure by way of winding up and dissolution of the Company and the transfer or sale of assets to a new company incorporated in New South Wales would involve loss of the identity

of the Company, and the disturbance of its financial structure and would interfere with the continuity of its operations with considerable attendant expense and delay:

And whereas it is desirable that the Company should be enabled to become a company incorporated under the laws of New South Wales without any such loss of identity, disturbance or interference and that thereupon the provisions of the Companies Acts 1948 to 1967 (with the exception of those provisions which apply to oversea companies) should cease to apply to the Company:

And whereas by virtue of provisions contained in the Companies (Transfer of Domicile) Act 1968 passed by the legislature of New South Wales and subject to the several conditions set forth in that Act, the Company will be enabled, upon the commencement of this Order, to become a company deemed to be incorporated under the Companies Act 1961 passed by the said legislature:

And whereas it is expedient that such provisions should be enacted as are in this Order contained:

And whereas the purposes of this Order cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936: 1936 c. 52.

Now, therefore, in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

1. This Order may be cited as the New Zealand and Australian Short title.
Land Company Limited Order 1972.

2.—(1) In this Order unless the subject or context otherwise Interpretation.
requires—

“the companies’ registrar” means the registrar or other officer performing under the Companies Act 1948 the duty of 1948 c. 38.
registration of companies in Scotland;

“the Company” means The New Zealand and Australian Land Company Limited;

“the date of registration” means the date certified pursuant to section 8 of the Companies (Transfer of Domicile) Act 1968 passed by the legislature of New South Wales as the date on which the incorporation of the Company is changed to incorporation as a company under the Companies Act 1961 passed by the same legislature;

“existing” means existing immediately before the date of registration;

“New South Wales” means the State of New South Wales in the Commonwealth of Australia.

(2) Any reference in this Order to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment or to any enactment substituted for the enactment, including this Order.

**c. ii *New Zealand and Australian Land Company Limited*
*Order Confirmation Act 1972***

Transfer on
authorisation.

3. Subject to the laws in force in New South Wales and with such legislative, governmental, municipal or other authority, concession, licence or consent as is necessary the Company may transfer its registered office from Scotland to a place in New South Wales.

Registrar in
Scotland to
strike off
register.

4.—(1) As soon as reasonably practicable after the date of registration the Company shall notify the companies' registrar thereof by cablegram and shall also transmit to him by registered or insured post a copy of the certificate issued under section 8 of the Companies (Transfer of Domicile) Act 1968 passed by the legislature of New South Wales and providing that from the date so certified the incorporation of the Company is changed to incorporation under the Companies Act 1961 passed by the same legislature, and thereupon the companies' registrar shall as from the date of registration strike the name of the Company from the register in Scotland and from that date the provisions of the Companies Acts 1948 to 1967 (with the exception of those provisions which apply to oversea companies) shall not apply to the Company but the Company shall not thereby cease or be deemed to cease to exist but shall instead be or be deemed to be a company incorporated under the laws of New South Wales and subject thereto for all purposes shall be and be deemed to be the same company as the existing company.

(2) The companies' registrar shall retain and register the copy of the certificate of incorporation.

Repeal.
1877 c. xcv.

5. The New Zealand and Australian Land Company, Limited, Act 1877 shall be repealed on the date of registration.

Copy of Order
to be
registered.

6. The Company shall deliver to the companies' registrar a printed copy of the Act confirming this Order and he shall retain and register the copy delivered and if no such copy is so delivered within three months from the date of the passing of the Act confirming this Order the Company shall incur a fine not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully neglects to secure observance of the requirement of this section shall incur the like fine. Every fine under this section shall be recoverable summarily.

Costs of
Order.

7. All the costs, charges and expenses preliminary to and of and incidental to the preparation, application for, obtaining and confirming of this Order or otherwise in relation thereto, shall be borne and paid by the Company.

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